

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT		BPA NO.	1. CONTRACT ID CODE	PAGE 1	OF 4	PAGES
2. AMENDMENT/MODIFICATION NUMBER 0002		3. EFFECTIVE DATE 05-30-2025	4. REQUISITION/PURCHASE REQ. NUMBER		5. PROJECT NUMBER (if applicable) None	
6. ISSUED BY CODE 36C260 Network Contracting Office 20 ATTN: V4CONT 1601 E. Fourth Plain Blvd Bldg.17, Suite B428 Vancouver WA 98661		7. ADMINISTERED BY (If other than Item 6) CODE 36C260 Network Contracting Office 20 ATTN: V4CONT 1601 E. Fourth Plain Blvd Bldg.17, Suite B428 Vancouver WA 98661				
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code) To all Offerors/Bidders			(X)	9A. AMENDMENT OF SOLICITATION NUMBER 36C26025R0011		
			☒	9B. DATED (SEE ITEM 11)		
			☐	10A. MODIFICATION OF CONTRACT/ORDER NUMBER		
				10B. DATED (SEE ITEM 13)		
CODE		FACILITY CODE				
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS						
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.						
12. ACCOUNTING AND APPROPRIATION DATA (If required)						
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS, IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.						
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.					
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).					
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:					
☐	D. OTHER (Specify type of modification and authority)					
E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.						
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)						
SEE CONTINUATION PAGE						
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.						
15A. NAME AND TITLE OF SIGNER (Type or print)			16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
15B. CONTRACTOR/OFFEROR (Signature of person authorized to sign)			15C. DATE SIGNED		16B. UNITED STATES OF AMERICA (Signature of Contracting Officer)	
					16C. DATE SIGNED	
PREVIOUS EDITION NOT USABLE						

The purpose of this amendment is to make the following changes:

1. Change E.2 II Step-by-Step Instructions to Interested Offerors, to:

1. Prepare your proposal. Your proposal **MUST** include electronic copies of all documents listed below via email as **individual** attachments.

FACTOR 1- Technical Capability

- a. Signed and completed SF1449 (this is the cover page of this Solicitation).
- b. Point of contact.
- c. Completed representations and certifications found in 52.212-3 of this solicitation. You must also ensure that you are actively registered in the System for Award Management (SAM) databased located here: <https://beta.sam.gov/> (see 6 above).
- d. Most recent State inspection, including any current State Ombudsman reports, nursing home star ratings found on <https://www.medicare.gov/care-compare/?providerType=NursingHome> and (past performance proposal) and any plan of correction. To be eligible the facility must have: 1) a three- star overall rating, or 2) a two-star overall rating with a four star or greater quality measures score on the Centers for Medicare and Medicaid (CMS).
- e. Valid and active State nursing home license.
- f. Valid and active insurance certificate (Medical/Professional Liability) for the specific nursing home.
- g. Full fire safety sprinkler system coverage in accordance with the Federal Register regulation at 73 FR 47075 and any other applicable Federal and State requirements as applicable (see [https://www.govinfo.gov/app/details/FR-2008- 08-13/E8-18670](https://www.govinfo.gov/app/details/FR-2008-08-13/E8-18670)).

FACTOR 2 – Past Performance

VA will pull CPARS reports for prior contracts.

FACTOR 3 – Price

Prices are determined by Geriatrics & Extended Care (GEC) & VA Central Office (VACO). GEC/VACO will publish Medicare Benchmark rates annually.

2. Email all documents to the assigned Contract Specialist Brian Stephen at Brian.Stephen@va.gov.

2 Change 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV2021) to:

(a)The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

1. **FACTOR 1: Technical Capability** — Technical capability to meet the Government's requirements by providing the documents outlined in section E.2, Detailed Proposal Instructions, paragraph II.1.a through g. This will be evaluated on a pass/fail basis. Failure to provide any required documents will result in a grade of fail.

2. **FACTOR 2: Past Performance Evaluation.** Past performance is one indicator of an offeror's ability to perform the contract successfully. Past performance is evaluated on an acceptable/unacceptable basis. Proposals that lack any past performance will receive a neutral rating. Past performance shall consist of:
- a. If the nursing home is an incumbent VA-contracted facility, it's previous performance will be reviewed in Contractor Performance Assessment Reporting System (CPARS).
 - b. While evaluating past performance, the Government evaluation team will not be limited to reviewing the past performance information provided in this proposal and reserves the right to review other available past performance information to assess past performance. Please note, technical evaluators and the Contracting Officer can use their personal knowledge of the contractor's prior VA contracts to assist with past performance evaluations. If an offeror does not have any past performance, a neutral rating will be given for this evaluation factor.
3. **FACTOR 3: Price Evaluation.** Prices are determined by Geriatrics & Extended Care (GEC) & VA Central Office (VACO). GEC/VACO will publish Medicare Benchmark rates annually.

(b) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.
(End of Provision)

3 Edit the following clauses to solicitation:

Add:

852.222-71, Compliance with Executive Order 13899 – DEVIATION APRIL 2025
System for Award Management Updates

Change:

52.212-5 to Contract Terms and Conditions Required to Implement Statutes or Executive Orders – JAN 2025 – Deviation Feb 2025
52.212-3 to Offeror Representations and Certifications – Commercial Products and Commercial Services, - May 2024 – Deviation Feb 2025

End of amendment

See attached document: 852.222-71 COMPLIANCE WITH EXECUTIVE ORDER 13899 -
DEVIATION APR 2025.

See attached document: SYSTEM FOR AWARD MANAGEMENT UPDATES.

See attached document: 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES - MAY 2024 - DEVIATION FEB 202.

See attached document: 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - JAN 2025 - DEVIATION FEB 2025.